

FIRST INFORMATION REPORT
(Under Sec.154 Cr.P.C.)

Book No. 949

Serial No. 15

1. District : PS: Year: FIR No.: Date:

New Delhi SC-III/ND 2022 RC-31(S)/2022/SC-III/ND 16.11.2022

2. (1) Act IPC Sections: 120-B, 384, 389.

3. (a) **Suspected Offence-**

Criminal conspiracy, extortion etc.

Day: from Date: 20.04.2021 to 20.04.2021 Time: 11:00 hrs. to 11:00 hrs.

Information received at PS: **CBI, SPECIAL CRIME-III, NEW DELHI**

Entry No.: 05 Date: 16.11.2022 Time: 1300 Hrs.

4. Type of information (Written / Oral): Written (The FIR is re-produced from Marathi language written FIR No. 0140/2022 of PS; Thane Nagar).

5. Place of occurrence : Thane

(a) Direction & Distance from

Beat No. :

Address : Court Naka, Thane.

(b) In case, outside the limit of this Police Station, then

Name of PS - District -

6. Complainant / Informant. :

(a) Name : Shri Vikas Gabaji Dabhade

(b) Father's/Husband's Name : Shri Gabaji Dabhade

(c) Date/year of Birth : 1982

(d) Nationality : Indian

(e) Passport No. - NA Date of Issue – NA Place of issue - NA

(f) Profession :

(g) Address : 1103, Mulberi, Runwal Garden
City, Thane (West), Thane City,
Maharashtra, India.

7. Details of known/suspected/unknown accused with full particulars:
(Attached separate sheet, if necessary)

- Sonu Yogendra Jalan S/o. Yogendra Jalan, R/o. Plot No.1202, Tower No.2, Rustomjee Ozone, Malad (West), Mumbai-400064, Thane City, Maharashtra, India.
- Ketan Mansukhlal Tanna S/o. Mansukhlal Tanna, R/o. 2001, Rustomjee Ozone, Tower No.3, Behind Goregaon Telephone Exchange, Goregaon, Thane City, Maharashtra, India.
- Jay Ketan Tanna S/o. Ketan Tanna, R/o. 2001, Rustomjee Ozone, Tower No.3, Behind Goregaon Telephone Exchange, Goregaon, Thane City, Maharashtra, India.

8. Reasons for delay in reporting by the complainant / informant: **NO DELAY**

9. Particulars of properties Stolen (Attach separate sheet, if necessary):

10. Total value of property stolen:

11. Inquest Report/U.D. Case No., if any: NA

12. First information contents (Attach separate sheet, if required):

In compliance of order dtd. 24.03.2022 passed by Hon'ble Supreme Court of India in Crl. Appeal No. 473/2022 (arising out of SLP Crl. 8788/2021) Parambir Singh Vs. State of Maharashtra & Ors. the investigation of the case FIR No. 0140/2022 dtd. 23.08.2022 registered at PS: Thane Town Police Station, District- Thane City, Crime under IPC Section 384, 389, 120-B has been transferred to CBI for investigation. The English translation of the aforesaid complaint written in Marathi with its contents are as under: -

As per the Crime Reg. No.140/2022 of Thane Nagar Police Station under Section 384, 389, 120(B) of IPC, Shri Vikas Gabaji Dabhade, Age 40 Years, Occupation: Business/Trade, Resident of 1103, Mulberry, Ruwal, Garden City, Thane West (Mobile no 9821439080), on being asked personally, giving my statement that

I am living in above mentioned address along with my family. I am involved in construction business and support my family the income earned from it. I have a good reputation with respectable people of society and have good position in business fraternity. My father was a police officer so, I know many police officers.

I had filed a Criminal M.A. No. 1812/2022 in the court of Chief Judicial Magistrate, Main Court, Thane. Accordingly, the Hon`ble Court passed an order vide M.Ow.No.1562/2022 dated 18/08/2022 and ordered Thane Nagar Police Station to register and to investigate the case under Section 156(3) of Cr. PC.

In April May 2021, it came to my notice that in an interview given to a news Channel by a person named Sonu Jalan, he had made false baseless and defamatory complaints against me. In the said interview, he has alleged that Sonu Jalan, Ketan Tanna and others were extorted by some police officers and private individuals and I accepted the said ransom amount and gave it to the police officers. But the said matter is false and baseless and defamed my character, so, I immediately on 05/05/2021 sent a Legal Notice for unconditional apology to Shri Ketan Tanna and Shri. Sonu Jalal through my lawyer Shri Mayur Kute, they did not reply to the notice sent by me.

Before that, Shri Jai Ketan Tanna on 08/03/2019 had made a written complaint to the Hon`ble Commissioner of Police, Thane City that in the Thane Nagar Police Station, Crime Reg. No. 93/18 under Section 363, 384, 387, 34 of I.P.C. and Sections 3, 25 of the Indian Arms Act and Sections 3(1)(ii), 3(2), 3(4) of MCOCA Act, his father named Ketan Tanna has wrongly being implicated. After perusing the said application, it is not mentioned anywhere that I have taken Rs. 50 Lakhs from Shri Jai Ketan Tanna. But on 30/07/21, at Thane Nagar Police Station, Crime No.151/21 under Section 384, 386, 387, 389, 392, 324, 323, 166 504, 506, 506 (2), 120(B), 109 of I.P.C. including Sections 3, 25 of Indian Arms Act was filed by Shri Ketan Mansukhlal Tanna. In this case it has been stated that at the outside of office of the Anti-Extortion Squad, Thane City, Jai Tanna took Rs. 50 lakh from his vehicle and gave it to me. The said written complaint is attached herewith.

Thereafter, on 19/09/2019 and on 03/10/2010, Ketan Tanna filed written complaints with the Director General of Police, Mumbai, Maharashtra. The said application is as narrated in the earlier application. The said applications are attached herewith.

On the basis of complaint filed by the Complainant Ritesh Shah against Sonu Jalan, Ketan Tanna, and others at Thane Nagar Police Station, a Crime Reg. No. 93/2018 under Sec. 363, 384, 386, 387, 34 of I.P.C. with Sec 28 of I.I.A. with Section 3(1)(2), 3(4) of MCOCA Act has been registered and Sonu Jalan and Ketan Tanna have been arrested in the said crime. One Rajkumar Kothmire, PI who is the part of the investigation team was in this case. During the investigation of those crimes, one day in June 2018, Ketan Tanna and Jai Tanna along with Jagan owner of Kaka Bar, met me in person at Court Naka, Thane and requested me to provide some help to Sonu Jalan and Ketan Tanna in the case through Rajkumar Kothmire, PI. I refused to do his work and got angry at Jagan saying that I don't do such type of work. Therefore, they were angry with me for not doing the work of Sonu Jalan and Ketan Tanna. Ketan Tanna, Jagan and Jai Tanna had threatened me saying that they will see me. Thereafter, Sonu Jalan and Ketan Tanna were arrested in that case and later a charge sheet was filed against Ketan Tanna and Sonu Jalan.

Sonu Jalan and Ketan Tanna have filed Cr. Appeal No. 159/2020 before the Hon'ble High Court, Mumbai for the dismissal of the M.C.O.C. case filed against them. In that application also they have not mentioned about the demand of extortion by the investigating officers and other private persons.

Thereafter, Ketan Tanna and Sonu Jalan came out on bail almost two years later and filed complaints against the investigating officer of the MCOCA case. After that, an investigation was started in the said case by the State Crime Investigation Department in accordance with the said application. Accordingly, applicants and non-applicants in the application were called and their statements were recorded. Many persons mentioned in the application have stated in their statements that they have not paid any police officer or private person. Also, in the statements of persons in the application, circulated through social media, Nilesh Nanda alias Jumbo and Kushal Rambhiya, it is clearly mentioned that they have not paid any money to any private person or police officer.

In June 2021, Sonu Jalan, Ketan Tanna, Jai Tanna contacted me by keeping Pravin Behra as mediator and asked me if I was ready for settlement and to withdraw the complaints against me and if I paid Rs. 50 Lakhs to Sonu Jalan, Ketan Tanna, Jai Tanna then they would not include my name in the complaint to be filed in Thane Nagar Police Station. As I had not done anything against them and I was innocent, I refused to pay the amount of Rs. 50 lakhs as demanded by them. By their conversation, I understood that I was being deceived, I immediately asked them to compromise between themselves.

Between April and June 2021, Sonu Jalan, Ketan Tanna and Jai Tanna conspired and in conspiracy with each other in June 2018, Sonu Jalan and Ketan Tanna in Crime Reg. No. 93/2018 of Thane Nagar Police Station, Keeping PI, Rajkumar Kothmire who is well known to me as mediator, Jai Tanna and Ketan Tanna along with Jagan the owner of Kaka Bar, Malad, Mumbai in order to get the

investigation done in favour of them met me personally at Court Naka in April 2021 wherein I refused their request to help them in the investigation. Enraged by this, in June 2021, Sonu Jalan, Ketan Tanna and Jai Tanna colluded with each other and contacted Pravin Behra through mediator and demanded Rs. 50 Lakhs from me for not implicating me in the fake case and when I did not pay the said amount, Sonu Jalan, Ketan Tanna and Jai Tanna through the mediator Pravin Behra informed me that they will file a fake case against me.

Thereafter, on the evening of 30/07/2021, I came to know that on the basis of the complaint filed by Ketan Tanna, Crime Reg. No.151/2021 at Thane Nagar Police Station, under Sections 384, 386, 387, 389, 392, 324, 323, 166, 504, 506, 506(2), 120(B), 109 of I.P.C with Section 3, 25 of the Indian Arms Act, has been registered and I was made an accused in that case. On that day, Ketan Tanna and Sonu Jalan, in an interview given to news channels, also said that they had filed a complaint in my name. Thereafter, Thane Nagar Police Station conducted an investigation of Cr. Reg. No.151/2021 by the Special Police Team of Thane City Police and my statement has been recorded before them. Today, till date no action has been taken against me as there is no evidence against me. Similarly, like me, I came to know that money has been demanded from Sameer Bharti, who is my acquaintance, PI, Rajkumar Kothmire and other persons in the application by Sonu Jalan, Ketan Tanna, Jay Tanna and relatives. Among them, Sameer Bharti has refused to pay and therefore I came to know that his name has been mentioned in the supplementary statement. Ketan Tanna, Jai Tanna and Sonu Jalan in connivance with each other, in their complaint at Thane Nagar Police station deliberately named some police officers, me and other persons and lodged fake Cr. Reg. No. 151/2021 and implicated us as their demand of huge amount has not been fulfilled by us.

Between April and June 2021, in Crime Reg. No. 93/2018 of Thane Nagar Police Station, Sonu Jalan and Ketan Tanna along with Jagan the owner of Kaka Bar, Malad, Mumbai in order to get the investigation done in favour of them through PI, Rajkumar Kothmire who is well known to me, meet me personally at Court Naka in April 2021 wherein I refused their request to help them. Further, through mediator, Pravin Behra contacted me and demanded Rs. 50 Lakhs from me for not implicating me in the fake case and when I did not pay the said amount, enraged by this, Sonu Jalan, Ketan Tanna and Jai Tanna colluded with each other. Therefore, I have made a complaint against 1) Sonu Jalan 2) Ketan Tana 3) Jai Tanna under Section 384, 389, 120-B of IPC, 1860.

Copy of the Hon'ble Supreme Court order dtd. 24.03.2022 is enclosed as "**Annexure-A**" and copy of original FIR no. 0140 of 2022 of PS Thane Town Police Station, District- Thane City in Marathi is enclosed as "**Annexure-B**".

13. Action taken : Since the above information reveals commission of cognizable offences under various section of IPC as mentioned at serial no. 2. Therefore, FIR is re-registered in compliance of order dtd. 24.03.2022 passed by Hon'ble Supreme Court of India in Crl. Appeal No. 473/2022 (arising out of SLP Crl. 8788/2021) Parambir Singh Vs. State of Maharashtra & Ors.

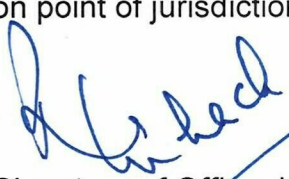
(1) Registered the case and took up the investigation on

(2) Directed (Name of IO) Rank : Satyaveer, PI
CBI, ACB,
New Delhi

(3) Refused investigation due to : NA

(4) Transferred to PS - District - on point of jurisdiction -

14. Signature/Thumb Impression
of the complainant/informant


Signature of Officer in-charge
Police Station: CBI/SC-III/ND
Name: Ram Singh
Rank : I/C.SUPDT. OF POLICE
CBI/SC-III/NEW DELHI

RAM SINGH, ASP
के. अ. ब्यूरो, वि. अ. -III, नई दिल्ली
CBI, SC-III, New Delhi

15. Date and time of dispatch to the Court

Signature of recording Officer with
date

Attachment to item 7 of First Information Report

S.No.	(Sex)	Date/Year of Birth	(Built)	(Height) (in cms)	(Complexion)	(Identification Mark/s)
1	2	3	4	5	6	7
1. 2. 3.	Male Male Male					

(Deformities/ peculiarities)	(Teeth)	(Hair)	(Eye)	(Habits)	(Dress Habit/s)
8	9	10	11	12	13

(Language / Dialect)	(Burn Mark)	(Leucoderma)	(Mole)	(Scar)	(Tattoo)
14	15	16	17	18	19

These fields will be entered only if complainant/informant gives any one or more particulars about the suspect/accused.

Endst. No. 3725 /3/31(S)/2022/SC-III/CBI/ND

Dated: 16.11.2022

Copy forwarded to the following for information & further necessary action:

- Hon'ble Court of Chief Judicial Magistrate, Thane City, Thane, Maharashtra.
- Head of Zone (Delhi Zone), CBI, HO, New Delhi.
- Head of Branch, CBI, ACB, New Delhi
- Sh. Satyaveer, Inspector of Police, CBI, ACB, New Delhi.
- Crime Section, CBI, SC-III, New Delhi
- ✓ Guard File.


(Ram Singh)
I/c. Supdt. of Police
CBI/SC-III/New Delhi
राम सिंह, अ.पु.अ.
RAM SINGH, ASP
के. अ. ब्यूरो, वि.अ.-III, नई दिल्ली
CBI, SC-III, New Delhi



मिथ्या (५९)

N.C.R.B (एन.सी.आर.बी)
I.I.F.-I (एकीकृत अन्वेषण फॉर्म - १)

FIRST INFORMATION REPORT

(Under Section 154 Cr.P.C.)

प्रथम खबर अहवाल
(कलम १५४ फौजदारी प्रक्रिया संहिता)

1. District (जिल्हा): ठाणे शहर P.S.(ठाणे): ठाणे नगर Year (वर्ष): 2022
FIR No.(प्रथम खबर क्र.): 0140 Date and Time of FIR (प्र. ख. दिनांक आणि वेळ): 23/08/2022 21:05 बजे

S.No. (अ.क्र.)	Acts (अधिनियम)	Sections (कलम)
1	भारतीय दंड संहिता १८६०	३८४
2	भारतीय दंड संहिता १८६०	३८९
3	भारतीय दंड संहिता १८६०	120-B

3. (a) Occurrence of offence (गुन्ह्याची घटना):

1. Day(दिवस): मंगलवार Date From (दिनांक पासून): 20/04/2021
Time Period पहर 4 Date To (दिनांक पर्यंत): 20/04/2021
(कालावधी): Time From (वेळेपासून): 11:00 बजे
Time To (वेळेपर्यंत): 11:00 बजे

(b) Information received at P.S. (माहिती मिळालेले पोलीस ठाणे):

Date (दिनांक): 23/08/2022

Time (वेळ): 19:00 बजे

(c) General Diary Reference (रोजनामचा संदर्भ)

Entry No. (नोंद क्र.): 037

Date & Time (दिनांक आणि वेळ): 23/08/2022 21:05 बजे

4. Type of Information (माहितीचा प्रकार): लेखी

5. Place of Occurrence (घटनास्थळ):

1.(a) Direction and distance from P.S.(पोलीस ठाण्यापासून दिशा व अंतर): उत्तर, 1 किमी

Beat No. (बिट क्र.):

(b) Address (पत्ता): कोर्ट नाका, ठाणे प

(c) In case, outside the limit of this Police Station, then (या पोलीस ठाण्याच्या हद्दीबाहेर असल्यास):

Name of P.S.(पोलीस ठाण्याचे नाव):

District(State) (जिल्हा(राज्य)):

6. Complainant / Informant (तक्रारदार/माहिती देणारा):

(a) Name (नाव): विकास गबाजी दाभाडे

(b) Father's Name (वडील चे नाव): गबाजी दाभाडे

(c) Date/Year of Birth (जन्म तारीख/वर्ष): 1982

(d) Nationality (राष्ट्रीयत्व): भारत

(e) UID No. (यु.आय.डी. क्र.):

(f) Passport No.(पारपत्र क्र.):

Date of Issue (दिल्याची तारीख):

Place of Issue (दिल्याचे ठिकाण):

(g) Id details (Ration Card, Voter ID Card, Passport, UID No., Driving License, PAN)

ओळखपत्र विवरण (राशन कार्ड, मतदाता कार्ड, पासपोर्ट, यूआईडी सं., ड्राइविंग लाइसेंस, पॅन कार्ड)

S.No.(अ.)	Id Type (ओळखपत्राचा प्रकार)	Id Number (ओळखपत्राचा क्रमांक)
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05/05/2021 रोजी माझी बिनशर्त माफी मागावी या करीता श्री. केतन तन्ना व सोनू जलाल यांना माझे वकील नामे श्री. मयुर कुटे यांचे मार्फतीने कायदेशीर नोटीस पाठविलेली होती. मी पाठविलेल्या नोटीसीला त्यांनी उत्तर दिले नाही. त्या अगोदर श्री. जय केतन तन्ना यांनी दिनांक 08/03/2019 रोजी मा. पोलीस आयुक्त, ठाणे शहर यांना तक्रारी अर्ज केला होता की, ठाणेनगर पोलीस ठाणे गुर.नं. 93/18 भा.द.वि. क. 363, 384, 387, 34 भारतीय हत्यार अधिनियम चे कलम 3, 25 सह मोक्का कायदा क. 3(1)(ii), 3(2), 3(4) या गुन्ह्यामध्ये त्यांचे वडील नामे- केतन तन्ना यांना चुकीचे पध्दतीने अडकविलेले आहे. सदर अर्जाचे अवलोकन केले असता त्यामध्ये मी श्री. जय केतन तन्ना यांचेकडून 50 लाख रु. घेतल्याचे कोठेही नमुद केलेले नाही. परंतु दि. 30/07/21 रोजी श्री. केतन मनसुखलाल तन्ना यांनी ठाणेनगर पोलीस ठाणे येथे दाखल केलेला गुर.नं. 151/21 भा.द.वि. क. 384, 386, 387, 389, 392, 324, 323, 166, 504, 506, 506(2), 120(बी), 109 सह शस्त्र अधिनियम कलम 3, 25 या गुन्ह्यामध्ये खंडणी विरोधी पथक, ठाणे शहर यांचे कार्यालयाबाहेर असलेल्या जय तन्ना यांचे गाडीतून जय तन्ना यांनी 50 लाख रुपये काढून मला दिल्याचे नमुद केलेले आहे. सदर तक्रारी अर्ज हा सोबत जोडलेला आहे. त्यानंतर दिनांक 19/09/2019 रोजी व दिनांक 03/10/2019 रोजी केतन तन्ना याने मा. पोलीस महासंचालक, मुंबई, महाराष्ट्र यांना तक्रारी अर्ज केलेले आहेत. सदर अर्जांमध्ये पुर्वी दिलेल्या अर्जाप्रमाणे कथन केलेले आहे. सदरचे अर्ज हे सोबत जोडलेले आहेत. फियादी रिशे शहा यांनी दिलेल्या फियादीवरून सोनू जलान, केतन तन्ना, व इतर यांचे विरुद्ध ठाणे नगर पोलीस स्टेशन येथे ग.र.नं 93/2018 भा.द.वि.कलम. 363, 384, 386, 387, 34 सह भा.द.का.क 28 सह मोक्का कलम 3(1)(2), 3(4) अन्वये गुन्हा नोंद असुन त्यामध्ये सोनू जलान व केतन तन्ना यास अटक करणेत आलेली आहे. सदर गुन्ह्यांचा तपास चालु असताना सदर केसच्या तपास पथकामध्ये माझे परिचयाचे पो. निरी. राजकुमार कोथमिरे हे होते. त्या गुन्ह्यांचा तपास चालु असताना जुन 2018 मध्ये एके दिवशी केतन तन्ना व जय तन्ना यांनी काका बारचे मालक जगन यांचे सह कोर्टनाका, ठाणे येथे मला प्रत्यक्ष भेटून पो.निरी. राजकुमार कोथमिरे यांचेकडून सोनू जलान व केतन तन्ना यांना गुन्ह्यामध्ये काही मदत करावी अशी विनंती केली होती. मी त्यांचे काम करण्यास नकार दिला व त्यावेळी अशी कामे मी करत नाही असे सांगुन मी जगन यावर रागावलो. त्यामुळे सोनू जलान व केतन तन्ना यांचे काम मी न केल्याने ते माझेवर राग धरून होते. केतन तन्ना, जगन व जय तन्ना याने आम्ही तुला बघुन घेऊ असे धमकावले होते. त्यानंतर सोनू जलान व केतन तन्ना यांना त्या केसमध्ये अटक झाली व पुढे केतन तन्ना व सोनू जलान त्यांचे विरुद्ध दोषारोप पत्र ही दाखल झाले. सोनू जलान व केतन तन्ना यांनी त्यांचे विरुद्ध दाखल एम.सी.ओ.सी. केस रद्द होणे करीता मा. उच्च न्यायलय, मुंबई येथे क्रिमीनल अपील नं. 159/2020 दाखल केले आहे. त्यामध्ये सुध्दा त्यांनी तपासी अधिका-यांनी व इतर खाजगी व्यक्तीने खंडणीची मागणी केले बाबत उल्लेख केलेला नाही.त्यानंतर केतन तन्ना व सोनू जलान हे सुमारे दोन वर्षांनंतर जामीनावर बाहेर आल्यानंतर त्यांनी नमुद मोक्का केसचा तपास करणा-या अधिका-यांविरुद्ध तक्रारी केल्या. त्यानंतर सदर प्रकरणी राज्य गुन्हे अन्वेषण विभागाकडून सदर अर्जाच्या अनुषंगाने तपास सुरु करण्यात आला. त्यानुसार अर्जांमधील अर्जदार व गैरअर्जदार व्यक्तींना बोलावुन त्यांचे जबाब घेण्यात आले. अर्जांमध्ये नमुद केलेल्या ब-याच लोकांनी आम्ही कोणत्याही पोलीस अधिकारी किंवा खाजगी व्यक्तीला पैसे दिले नसल्याचे आपल्या जबाबात म्हटले आहे. तसेच सोशल मिडीया मार्फत प्रसारित झालेले अर्जातील व्यक्तीचे निलेश नंदा उर्फ जम्बो व कुशल रामभीया यांचे जबाबात त्यांनी कोणत्याही खाजगी इसम अगर पोलीस अधिकारी यांना पैसे दिले नाही असे स्पष्ट उल्लेख केलेला आहे. जुन 2021 मध्ये प्रविण बेहरा यास मध्यस्थी घालुन सोनू जलान, केतन तन्ना व जय तन्ना याने मला संपर्क केला त्याने माझे विरुद्ध केलेल्या तक्रारी मागे घेण्यासाठी तडजोड करण्यास तयार आहे काय असे विचारले व 50 लाख रुपये सोनू जलान, केतन तन्ना, व जय तन्ना यांना दिल्यास ठाणेनगर पोलीस स्टेशन येथे दाखल करणारे फियादीमध्ये माझे नाव टाकणार नाही असे सांगितले. मी त्यांचे विरुद्ध कोणतेही काम केले नसल्याने व मी निष्पाप असल्याने मी त्यांची मागणी केलेले 50 लाख रुपये रक्कम देण्यास नकार दिला. त्याचे संभाषणातून मला फसवले जाणार असल्याचे माझे लक्षात आल्याने मी लागलीच त्यांना आपसात समझोता करून घ्या असे सांगितले होते. एप्रिल ते जुन 2021 च्या दरम्यान सोनू जलान, केतन तन्ना व जय तन्ना यांनी आपसात संगनमत करुन व कटकारस्थान रचुन जुन 2018 मध्ये सोनू जलान व केतन तन्ना यांनी ठाणेनगर पोलीस स्टेशन ग.र.नं. 93/2018 या गुन्ह्यात माझे परिचयाचे पो.निरी. राजकुमार कोथमिरे यांचे माध्यमातून गुन्ह्यात त्यांचे बाजुने तपास करणेकामी जय तन्ना व केतन तन्ना यांनी काका बार, मालाड, मुंबई यांचे मालक जगन यांचे सह मला कोर्ट नाका येथे एप्रिल 2021 मध्ये प्रत्यक्ष भेटून केलेली विनंती प्रमाणे मी त्यांना मदत करण्यास नकार दिला. याचा राग मनात धरुन जुन 2021 मध्ये सोनू जलान, केतन तन्ना व जय तन्ना यांनी आपसात कट करुन प्रविण बेहरा यास मध्यस्थी मार्फत संपर्क करुन मला खोट्या गुन्ह्यात न अडकवण्याकरीता 50 लाख रुपये रकमेची मागणी केली व ती मी त्यांना दिली नाही म्हणुन माझे विरुद्ध खोटा गुन्हा दाखल करणार असे सोनू जलान, केतन तन्ना व जय तन्ना यांनी मध्यस्थी इसम नामे- प्रविण बेरा यांचे मार्फतीने सांगितलेले होते. त्यानंतर दिनांक 30/07/2021 रोजी संध्याकाळी मला समजले की, केतन तन्ना याने दिलेल्या फियादीवरून ठाणेनगर पोलीस स्टेशन येथे ग.र.नं 151/2021 भा. द. वि. कलम 384, 386, 387, 389, 392, 324, 323, 166, 504, 506, 506(2), 120(बी), 109 सह शस्त्र अधिनियम कलम 3, 25 अन्वये गुन्हा नोंद असुन त्यामध्ये मला आरोपी केलेले आहे. त्या दिवशी केतन तन्ना व सोनू जलान यांनी वृत्तवाहीन्यांना दिलेल्या मुलाखतीमध्ये सुध्दा माझे नावाने फियाद दिली असल्याचे सांगितले. त्यानंतर सदर ठाणेनगर पोलीस स्टेशन ग.र.नं 151/2021 चा तपास ठाणे शहर पोलीसांचे विशेष पोलीस पथकाने केला त्यांचे समक्ष माझा जबाब झालेला आहे. आज पावेतो माझे विरुद्ध पुरावा उपलब्ध झाला नसल्याने माझे विरुद्ध कोणतेही कारवाई करण्यात आलेली नाही. त्याप्रमाणे माझा परिचय असलेले समीर भारती, पो.निरी. राजकुमार कोथमिरे व अर्जातील इतर व्यक्तीकडे माझे प्रमाणेच पैशाची मागणी सोनू जलान, केतन तन्ना, जय तन्ना व नातेवाईक यांचे मार्फत केली असल्याचे मला समजते. त्यापैकी समीर भारती यांनी पैसे देण्यास नकार दिला असल्याने त्यांचे नाव पुरवणी जबाबांमध्ये घेण्यात आले असल्याचे मला समजले आहे. केतन तन्ना, जय तन्ना व सोनू जलान यांनी संगनमत करुन ठाणेनगर पोलीस स्टेशन येथे दिलेल्या फियादमध्ये काही पोलीस अधिकारी, माझेसह व इतर व्यक्तींना त्यांनी मागणी केलेली मोठी रक्कम न दिल्याने जाणीवपूर्वक त्यांची नावे गुंतवुन ग.र.नं. 151/2021 ही खोटी फियाद दिली आहे. तरी एप्रिल ते जुन 2021 चे दरम्यान ठाणेनगर पोलीस स्टेशन ग.र.नं 93/2018 या गुन्ह्यात माझे परिचयाचे पो.निरी राजकुमार कोथमिरे यांचे माध्यमातून गुन्ह्यात त्यांचे बाजुने तपास करणेकामी मदत करण्याकरीता जय तन्ना व केतन तन्ना यांनी काका बार, मालाड, मुंबई यांचे मालक जगन यांचे सह मला कोर्ट नाका येथे एप्रिल 2021 मध्ये प्रत्यक्ष भेटून सांगितले असता मी त्यांना मदत करण्यास नकार दिला. तसेच प्रविण बेहरा या मध्यस्थी इसमामार्फत संपर्क करुन मला खोट्या गुन्ह्यात न अडकवण्याकरीता 50 लाख रुपये रकमेची मागणी केली ती मी पुर्ण न केल्याने त्याचा राग मनात धरुन जुन 2021 मध्ये सोनू जलान, केतन तन्ना व जय तन्ना यांनी आपसात कट केला म्हणुन माझी इसम नामे- 1) सोनू जलान 2) केतन तन्ना 3) जय तन्ना यांचेविरुद्ध 384, 389, 120(ब) अन्वये फियाद आहे. माझा वरील फियादी जबाब संगणकावर टंकलिखित केलेला असुन तो माझे सांगणे प्रमाणे बरोबर व खरा आहे.

3

N.C.R.B (एन.सी.आर.बी)

I.I.F.-I (एकीकृत अन्वेषण फॉर्म - १)

Attachment to item 7 of First Information Report (प्रथम खबरीतील मुद्दा क्र. ७ ला जोडपत्र):

Physical features, deformities and other details of the suspect/accused: (If known / (संशयीत/आरोपीचे (माहित असलेल्या/पाहिलेल्या) शारीरिक वैशिष्ट्ये, व्यंग आणि इतर तपशील))

S.No.(अ.क्र.)	Sex (लिंग)	Date/Year of Birth (जन्म)	Build (बांधा)	Height (cms.) (उंची)	Complexion (रंग)	Identification Mark(s) (ओळखीच्या खुणा)
1	2	3	4	5	6	7
1	पुरुष					चेचक के दाग: NO
2	पुरुष					चेचक के दाग: NO
3	पुरुष					चेचक के दाग: NO
Deformities/ Peculiarities	Teeth (दात)	Hair (केस)	Eyes (डोळे)	Habit(s) (सवयी)	Dress Habit(s) (पोषाखाच्या सवयी)	
8	9	10	11	12	13	
Language /Dialect (भाषा/बोलीभाषा)	Place Of (का स्थान)					Others (इतर)
	Burn Mark	Leucoderma (कोड)	Mole (तिळ)	Scar (व्रण)	Tattoo (गोदण)	
14	15	16	17	18	19	20

These fields will be entered only if complainant/informant gives any one or more particulars about the suspect/accused.

(जर तक्रारदार/माहिती देणा-याने संशयीत/आरोपीविषयी एक किंवा त्यापेक्षा अधिक तपशील दिल्यास फक्त यातील एकान्यांची नोंद घेतली जाईल.)

IN THE SUPREME COURT OF INDIA
CRIMINAL APPELLATE JURISDICTION

CRIMINAL APPEAL NO. 473 /2022
(Arising out of SLP(Cr1.) No. 8788/2021)

PARAM BIR SINGH

.. APPELLANT(S)

VERSUS

THE STATE OF MAHARASHTRA & ORS.

.. RESPONDENT(S)

O R D E R

Leave granted.

The murky churning from the battle royale between the then Home Minister of State of Maharashtra and the then Police Commissioner (appellant before us) has given rise to the unfortunate proceedings on which we have commented before.

At the stage of issuing notice on 22.11.2021, we had sketched out the contours of the controversy to the extent we would be required to examine.

We may also note that the allegations made by the appellant against the then Home Minister Shri Anil Deshmukh about a meeting at his residence with Shri Sachin Waze of the Crime Intelligence Unit in the presence of the Personal Secretary alleged to be expressing the wish of a

target to accumulate a sum of Rs. 100 crore per month from dance bars and hookah parlours is already forming subject matter of investigation by the Central Bureau of Investigation (CBI) in which Mr. Deshmukh is still in custody. It is in this context, we had taken note in the order dated 22.11.2021 of the submission of Mr. Puneet Bali, learned senior counsel for the appellant that CBI should investigate into the complete affairs and not the State police in whom he does not appear to have faith, despite having headed the same. In view of what was set out in letter dated 19.04.2021 to the Director, CBI, the transcripts of the whatapp messages exchanged from time to time in pursuance to whatever had transpired had been put on record. Some allegations were made against the then Director General of Police who is now the Commissioner of Police but in our view that aspect is only germane from the point of view of who would investigate into the matter and it is not a reflection on any conduct of the Police Commissioner, something we had put to Mr. Navroz Seervai, learned senior counsel, appearing for the said Commissioner (respondent No. 3). The picture emerging was naturally very disturbing. We had protected the appellant but asked him to join the investigation.

The only aspect which we are really called upon now to examine is whether 5 FIRs and 3 open enquiries (PRs.) registered against the appellant are also liable to be transferred to the CBI along with investigation already on against Mr. Anil Deshmukh or as canvassed by Mr. Darius Khambata, learned senior counsel for the State, the investigation should be carried on by the State Police authorities.

Learned counsel for the appellant has taken us through the list of relevant dates to bring to the notice of this Court what had transpired after the battle royale began. It is not necessary for us to delve into depth with the same but suffice to note the following aspects :

a) FIR No. 0277/2021 was filed at City Kotwali, Akola Station on 28.04.2021, transferred to Bazzar Peth Police Station at Kalyan, registered as FIR No. 105/2021 dated 29.04.2021 by one Bhimraj Rohidas Ghadge who was a police officer and claimed that he had been approaching various Courts and departments for registration of the FIR on account of occurrence of 23.08.2015 but was not successful. This complainant is an accused in 5 cases registered against him out of which 4 are under trial including under the

Prevention of Corruption Act.

- b) FIR No. 299/2021 at Marine Drive Police Station dated 21.07.2021 by Mr. Shyam Sundar Agarwal with the date of occurrence mentioned as February, 2020 against whom cases under the MCOCA have been registered.
- c) FIR No. 176 of 2021 at Kopari Police Station in Thane dated 23.07.2021 by Mr. Sharad Murlidhar Agarwal and offences mentioned are from 01.11.2016 to 15.05.2018 alleging *inter alia* extortion of amounts and properties from him and his uncle for not pressing charges against them under MCOCA and other provisions of law.
- d) FIR No. 151/2021 at Thane police Station dated 30.07.2021 by Mr. Ketan Mansukhlal Tanna with a period offence being 01.11.2018 to 07.02.2019 against whom also MCOCA cases are alleged to be pending.
- e) FIR No. 971/2021 at Goregaon Police Station dated 20.07.2021 by Mr. Bimal Agarwal qua offence arising from January 2020 to March 2021. He had been arrested by the Economic Offences Wing (EOW) for cheating the State Government of Rs.6.25 crore and his allegation was that it has been done at the behest of the appellant.
- f) Open Enquiry bearing number ENQ-2021/PR No.

153/Pol-2 dated 20.04.2021 by the State of Maharashtra to look into the allegations of the Police Inspector Mr. Anup Dange who was suspended in the year 2020 in connection with investigation in FIR 223/2019. Incidentally, he has been reinstated in March 2021.

g) Open Enquiry bearing No. 63/2021 dated 01.04.2021 into the allegation raised by Police Inspector Mr. Bhimrao Ghadge including under the SC/ST Act making allegations that the appellant has been taking money for posting of senior inspectors and demanding Rs. 2 crore for reinstating him and

h) PR. No. 160/Pol-2 dated 01.04.2021.

Learned counsel for the appellant thus contends by reference to the aforesaid that what would be better facts to shift these investigations to an independent agency and they form a part of a bouquet of cases lodged against the appellant for taking on Mr. Anil Deshmukh.

We had called upon the CBI also to place before us their stand and in the affidavit filed by them, it has been stated that the investigation against Shri Anil Deshmukh is already in progress and the following aspects emerged from the FIR in question:

"(i) that, the then Home Minister of Maharashtra, Shri Anil Deshmukh and unknown others have attempted to obtain undue advantage for improper and dishonest performance of their public duty;

(ii) that, Shri Sachin Vaze, Assistant Police Inspector, Mumbai Police had been reinstated into the police force after being out of the police service for more than 15 years. He was entrusted with most of the sensational and important cases of Mumbai City Police and that the then Home Minister was in knowledge of the said fact; and

(iii) that, the then Home Minister of Maharashtra and others exercised undue influence over the transfer & posting of officials and thereby exercising undue influence over the performance of official duties by the officials."

Insofar as the present controversy is concerned, it has been categorically stated in the affidavit filed by the CBI that the issues highlighted by the appellant deserve to be entrusted to the CBI for complete, thorough and impartial investigation. This is more so in the context of para (i) above on the aspect whether there has been attempt to obtain undue advantage by Shri Anil Deshmukh. In the process of investigation, the CBI had recorded statements of

a number of individuals and collected relevant documents with respect to obtaining undue advantage from orchestra Bars and other such institutions. In order to ensure the integrity of the investigation being conducted by the CBI, a detailed analysis of the FIRs and the appeals referred to aforesaid, would thus be relevant.

In fact it has been averred that in view of what had been noticed in the proceedings of this Court on 22.11.2021, there was apparently an endeavour to meddle in the Court entrusted investigation. We may however, recognize on the basis of submissions of learned counsel for the State that insofar the direct impact on the investigation with the CBI of the FIRs is concerned, one of them alone is stated to be directly connected.

Mr. Darius Khambata, learned senior counsel appearing for the State has made an impassioned plea to keep in mind the federal structure of our country, the sanctity of police investigation by the State, the possibility of faith in the police being eroded by entrusting it to CBI, absence of direct material by the appellant to claim such a transfer of investigation which should result in choosing the investigating agency, amongst other pleas.

We did put to the learned senior counsel as

to what more could shake the faith in the police of the State than what has already transpired. The objective is to embolden and restore the people's confidence in the police force by an impartial investigation which is necessary.

This is not a reflection on the police force of the State of Maharashtra which is respected but the troubling situation arising at the higher echelons which has brought about the scenario as presented before us.

We are unable to accept the plea of learned senior counsel that the FIRs registered really have to be appreciated in a scenario where when a person loses power, the persons who suffer at his hand come up with their complaints and the FIRs are registered. It is not a coincidental occurrence or occurrences arising from the aforesaid but we do believe *prima facie*, there has been some concerted effort in this direction arising from the *inter se* battle which needs investigation by the agency outside the State police.

We are of the view that the State itself should have offered in such a scenario that investigation should be carried out by the CBI and we must appreciate the hiatus taken by the learned counsel to persuade the State to see that point of

view, though he may not have been successful. We are thus, left to perform our task.

The exigencies in advancement of the principles of justice and fair play and the impartial enquiry require the investigation to be transferred to the CBI. We are not saying that the appellant is a whistle blower, we are not saying that anyone involved in this process is washed with milk. What is the truth, who is at fault, how does such a scenario come to prevail presenting a disturbing picture before the Court is something which the investigation must get into.

The CBI must hold an impartial enquiry into all these aspects to find out whether the allegations made resulting in the FIRs being registered have a ring of truth or whether they are only repercussion of the appellant having raised the red flag. We are not commenting on the merits of the allegations one way or the other and that is also the reason that we do not deem it appropriate to delve into details of all these aspects because we do not want in any manner the investigation to be influenced by any observations of ours.

We are unable to accept the findings of the High Court which seems to treat these as service

disputes, which they are not and thus, have to necessarily set aside the impugned judgment.

We thus, direct the further proceedings and investigations into the five FIRs and three PEs to be transferred to the Central Bureau of Investigation with all the records being handed over within one week from today by the State police authorities.

Needless to say, that all concerned including the appellant, other personas in this drama and the State police will render full assistance to the CBI in furtherance of their investigation to try to get to the truth.

Insofar as the departmental enquiries are concerned, in the very nature of the present proceedings which emanate basically from one set of allegations, it will be appropriate to await the result of the investigations now entrusted to the CBI. Needless to say, we are not revoking the suspension which order shall continue subject to any legal remedy which may be available to the appellant.

We do not know whether this is the end of the road or more allegations, more FIRs will be registered now arising from the period the appellant has served in Maharashtra.

We make it clear that if any FIRs are

registered, they too shall be transferred to the CBI for investigation.

The appeal is allowed in the aforesaid terms with the hope that we will see the truth emerge.

.....J.
[SANJAY KISHAN KAUL]

.....J.
[M.M. SUNDRESH]

NEW DELHI,
MARCH 24, 2022.

S U P R E M E C O U R T O F I N D I A
R E C O R D O F P R O C E E D I N G S

Petition(s) for Special Leave to Appeal (Crl.) No(s). 8788/2021
(Arising out of impugned final judgment and order dated 16-09-2021
in WP No. 1843/2021 passed by the High Court Of Judicature At
Bombay)

PARAM BIR SINGH

Petitioner(s)

VERSUS

THE STATE OF MAHARASHTRA & ORS.

Respondent(s)

IA No. 33563/2022 - INTERVENTION APPLICATION
IA No. 20858/2022 - PERMISSION TO PLACE ON RECORD SUBSEQUENT
FACTS)

Date : 24-03-2022 This matter was called on for hearing today.

CORAM :

HON'BLE MR. JUSTICE SANJAY KISHAN KAUL
HON'BLE MR. JUSTICE M.M. SUNDRESH

For Petitioner(s) Mr. Puneet Bali, Sr. Adv.
Ms. Natasha Dalmia, AOR
Mr. Utsav Trivedi, Adv.
Mr. Himanshu Sachdeva, Adv.
Ms. Manini Roy, Adv.
Ms. Aditya Soni, Adv.
Mr. Vishwajeet Beniwal, Adv.
Mr. Satyam Aneja, Adv.

For Respondent(s) Mr. Darius Khambata, Sr. Adv.
Mr. Rahul Chitnis, adv.
Mr. Sachin Patil, AOR
Mr. Tushar Hhathiramani, Adv.
Mr. Aaditya A Pande, Adv.
Mr. Geo Joseph, Adv.
Ms. Shwetal Shepal, Adv.

Mr. K.M. Nataraj, Ld. ASG
Mr. Kanu Agrawal, Adv.
Mr. Shantanu Sharma, Adv.
Mr. Ritwiz Rishabh, Adv.
Mr. Rajat Nair, Adv.
Mr. Udai Khanna, Adv.
Ms. Indira Bhakar, Adv.
Mr. Vinayak Sharma, Adv.

Mr. Arvind Kumar Sharma, AOR

Mr. Navroz Seervai, Sr. Adv.

Mr. Ranbir Singh, Adv.

Mr. Samrat Krishnarao Shinde, AOR

Mr. S.B. Talekar, Adv.

Mr. Vipin Nair, AOR

Mr. P.B. Suresh, Adv.

Mr. Arindam Ghosh, Adv.

Ms. Madhavi Ayyappan, Adv.

Mr. Siddharth Dave, Sr. Adv.

Mr. Gaurav Agrawal, AOR

UPON hearing the counsel the Court made the following
O R D E R

Leave granted.

The appeal is allowed in terms of the signed
order.

Pending applications stand disposed of.

[CHARANJEET KAUR]
ASTT. REGISTRAR-cum-PS

[POONAM VAID]
COURT MASTER (NSH)

[Signed order is placed on the file]